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Lawmakers, lobbyists gather in Napa ahead of key votes

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Blockchain and cryptocurrency. Artificial intelligence. Facial recognition technology. Health care innovation. The energy industry. Building tech economies in "underestimated" cities such as Fresno. Understanding the benefits of remote work. Helping small businesses thrive online.

Those are among the topics that state lawmakers and tech industry lobbyists are set to discuss today at the luxurious four-star Carneros Resort and Spa in Napa Valley as part of an event dubbed the Technology Policy Summit, according to a draft copy of the agenda I obtained.

The two-day conference — which, according to the draft agenda, began Thursday night with a panel on how 5G technology can help address climate change and was followed by a reception and dinner — comes exactly a week before lawmakers are set to make do-or-die decisions on a slate of controversial tech bills, including proposals to significantly expand kids' privacy rights online, allow public prosecutors to hold social media companies liable for intentionally addicting youth, and regulate the cryptocurrency industry.

Those bills are all on the suspense file, an opaque, twice-annual procedure in which lawmakers rattle through a list of hundreds of proposals at breakneck speed, passing or killing them without a word of explanation.

Specifically, they are all on the suspense file in the Senate Appropriations Committee, led by Democratic state Sen. Anthony Portantino of Glendale, who is attending the tech policy summit, his office confirmed Thursday.

* Lerna Shirinian, Portantino's communications director, said in a statement: "Senator Portantino has the reputation as being one of the most hardworking and accessible representatives in California, as he tries to meet with as many stakeholders as possible — both in the district and in the Capitol. Conference attendance doesn't have an impact on who he meets with, nor does it impact his decisions. For the Senator, listening to a panel discussion on a topic is no different than tuning into a podcast."

Also attending the event is Democratic Assemblymember Robert Rivas of Salinas, who's angling to become the next speaker of the state Assembly, his office confirmed. Assemblymember Jesse Gabriel, a Van Nuys Democrat authoring a high-profile bill to force social media companies to be more transparent about their terms of service, told me last month he also plans to attend.

Reached by phone Thursday, Ian Calderon confirmed he is also attending. Calderon, a former state Assemblymember who was co-chairperson of the California Legislative Technology and Innovation Caucus with its current co-chairperson, Democratic Assemblymember Evan Low of Cupertino, is now principal at a firm called Majority Advisors. State records show Majority Advisors is registered as a lobbying firm whose sole client is the Crypto Council for Innovation.

According to Calderon's company bio, he authored as a lawmaker bills related to blockchain and cryptocurrency and in 2015 was named Legislator of the Year by TechNet, a powerful lobbying firm that counts among its members Meta — the parent company of Facebook and Instagram — AT&T, Apple, Google and Amazon.com.

Representatives of TechNet's member companies were invited to the summit, Dylan Hoffman, the group's executive director for California, told me. Hoffman declined to comment on whether they planned to attend. Last month, Hoffman told me that TechNet plans "to pursue every legislative avenue to try to stop" the social media liability bill.

The annual summit is hosted by the Foundation for California's Technology and Innovation Economy, which includes Low's chief of staff on its board of directors. Lobbyists could attend for a minimum donation of $10,000, speak on a panel for $20,000, and brief lawmakers on a particular topic for $35,000, according to the Los Angeles Times. Low is currently under state investigation for having stopped disclosing donations made to the foundation at his request.

* Low said in a statement: "Educational policy summits play a key role in educating legislators on many issues facing our state. Some may mischaracterize this as a one-sided conversation, but this is about policymakers partnering with the innovation economy on how to make California a state that supports growth for future generations to come."

It's unclear exactly how many lawmakers will be in attendance this year. But 18 legislators in 2021 — 15 Assemblymembers and 3 senators, all Democrats — reported having received gifts from the Foundation for California's Technology and Innovation Economy at the time of last year's conference, according to state records analyzed by CalMatters data journalist Jeremia Kimelman. Almost all reported gifts of about $1,250.

Some have criticized the summit for being shrouded in secrecy. On Thursday, a mobile billboard truck urging lawmakers to support the youth online privacy bill was parked at the entrance to Carneros Resort and Spa — until it was ordered off the premises, resort personnel told CalMatters assistant photo editor Martin do Nascimento. The truck, hired by youth advocates and nonprofit corporate accountability group SumOfUs, later parked across the street.

* Aliza Kopans, founder of Tech(nically) Politics and Emma Lembke, founder of Log Off Movement, said in a statement: "Instead of listening to tech lobbyists, we're asking California lawmakers to listen to us — the young people hurt by technology's most damaging effects."

The coronavirus bottom line: As of Monday, California had 9,983,370 confirmed cases (+0.6% from previous day) and 92,889 deaths (+0.1% from previous day), according to state data now updated just twice a week on Tuesdays and Fridays. CalMatters is also tracking coronavirus hospitalizations by county.

California has administered 78,762,612 vaccine doses, and 71.7% of eligible Californians are fully vaccinated.

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